

Court No. - 29

Case :- WRIT - C No. - 40278 of 2024

Petitioner :- Shree Badri Kedar Papers Private Limited

Respondent :- State Of Up And 4 Others

Counsel for Petitioner :- Rahul Agarwal, Vedant Agarwal

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Vivek Kumar Birla, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Learned counsel appearing for the respondent nos.2 and 3 is praying for time to seek instructions in the matter.

2. Put up this case as fresh on 06.01.2025.

Order Date :- 4.12.2024

Nitendra

Court No. - 39

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Respondent :- State Of Up And 4 Others

Counsel for Petitioner :- Rahul Agarwal, Vedant Agarwal

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

On a request made on behalf of Sri Pranjal Mehrotra, learned counsel for the respondent-electricity corporation, **list this case on as fresh on 05.02.2025.**

Order Date :- 22.1.2025

Arun K. Singh

[Dr. Y.K. Srivastava, J.] [Siddhartha Varma, J.]

Court No. - 39

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Respondent :- State Of Up And 4 Others

Counsel for Petitioner :- Rahul Agarwal, Vedant Agarwal

Counsel for Respondent :- C.S.C., Pranjali Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Ms. Nand Prabha Shukla, J.

1. The petitioner when was aggrieved by the bill which was sent to him in the year 2022, had approached the High Court and the High Court in Writ-C No.6857 of 2022 on 5.7.2022 had directed the petitioner to approach the relevant authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 (henceforth called the "Code").

2. It is the contention of learned counsel for the petitioner that when the petitioner got knowledge of the order dated 27.8.2022 passed under Clause 6.5 of the Code in the month of November 2024, then they tried to get the order and somehow they got a screen-shot of it. He submits that a bare perusal of the order shows that it does not contain any reason which is the heartbeat of any order.

3. Learned counsel for the Electricity Department states that there is no order other than the order which is at page 30 of the writ petition i.e. the order dated 27.8.2022. He also could not point out any reason which might have been given in the order dated 27.8.2022

4. After having gone through the order, we are also of the

view that there was no application of mind when the order dated 27.8.2022 was passed. The order dated 27.8.2022 which is absolutely devoid of reason is, therefore, quashed and the matter is remitted back to the Executive Engineer-respondent no.3 who shall deal with the matter in accordance with the provisions of Clause 6.5 of the Code within a period of two months from the date of presentation of a certified copy of this order. Needless to mention that the order be passed after affording full opportunity of hearing to the petitioner.

6. With these observations, the writ petition stands disposed of.

Order Date :- 5.2.2025

GS

(Nand Prabha Shukla, J.)

(Siddhartha Varma, J.)